

[d]isobedience of a subpoena duly served"); see *Chapman v. Superior Court of Los Angeles County* (1968) 261 Cal.App.2d 194, 197-198;

The evidence proffered by Judgment Creditor demonstrates non-compliance with the duly served Subpoena. It appears just and appropriate for the Court to issue the requested Order to Show Cause.

Disposition

The Court finds and rules as follows:

1. The Motion for OSC is GRANTED.
2. The Court shall enter the proposed form of order lodged with the moving papers.

7. 9:00 AM CASE NUMBER: C24-00086
CASE NAME: EMIL MOUTON VS. ALLAN MENDIETA
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY:

TENTATIVE RULING:

Before the Court is a demurrer by defendant Allan Mendieta to plaintiffs' punitive damage allegations and prayer in the operative first amended complaint. For the reasons set forth, the demurrer is **OVERRULED**.

Background

Plaintiffs Emil Mouton and Elizabeth Kelly allege they were injured in a motor vehicle accident. The driver of the other vehicle was defendant Allan Mendieta. Plaintiffs sued Mr. Mendieta for the negligence (motor vehicle) and general negligence. The Court granted them leave to amend their original complaint to allege additional facts and attempt to state a basis for seeking punitive damages.

Mr. Mendieta filed a demurrer to the first amended complaint ("FAC") for failure to state facts sufficient for recovery of punitive damages. Plaintiffs oppose the demurrer. Mr. Mendieta also filed a motion to strike the punitive damages allegations and prayer for relief which is set concurrently with the hearing on the demurrer and will be addressed in a separate ruling.

Procedural Objection – Late Filing

A responsive pleading was required to be filed within 30 days after service of the FAC, as extended for service by email, mail, or other means. (Code Civ. Proc. §§ 430.40(a), 1010.6 and 1013.) Nevertheless, the Court has discretion to consider a late-filed demurrer. (*McAllister v. County of Monterey* (2007) 147 Cal.App.4th 253, 280; *Jackson v. Doe* (2011) 192 Cal.App.4th 742, 749-750.) The Court exercises its discretion to rule on the merits of the demurrer, which it finds should be overruled for the reasons stated.

Procedural Issue – Declarations Addressing Evidence and Merits of the Claim for Punitive Damages

Defendant filed a declaration of counsel attaching Defendant's own written responses to discovery and excerpts of deposition transcripts taken in the case in support of the demurrer. (Leary Decl. Exhs. 2-4.) After the Court ordered the parties to complete a compliant meet and confer under Code of Civil Procedure section 430.41, counsel for each side filed supplemental declarations confirming the meet

and confer discussion took place but also addressing the parties' competing descriptions of evidence regarding an alleged witness to the accident and to facts relevant to the punitive damages claim. The Court does not consider this evidence in ruling on the demurrer. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, court does not consider "the substance of declarations, matter not subject to judicial notice, or documents judicially noticed but not accepted for the truth of their contents. [Citations omitted.]"]; *Williams v. Southern California Gas Co.* (2009) 176 Cal. App. 4th 591, 600 ["[A] court ruling on a general demurrer is not empowered to 'ascertain whether the facts stated [in the complaint] are true or untrue.' [Citation omitted.], " holding trial court could not draw inferences from discovery responses in sustaining a demurrer based on the untruthfulness of the allegations of the complaint]); *Richtek USA, Inc. v. uPI Semiconductor Corp.* (2015) 242 Cal.App.4th 651, 660 [demurrer hearing cannot be turned into contested evidentiary hearing].)

Legal Standards Applicable to A Demurrer and Analysis

In ruling on the demurrer, the Court must accept as true all well-pled factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Carloss v. County of Alameda* (2015) 242 Cal. App.4th 116, 123 [citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318]; *Czajkowski v. Haskell & White, LLP* (2012) 208 Cal.App.4th 166, 173 ["a demurrer does not admit the plaintiff's contentions nor conclusions of law or fact."].) The Court also considers matters of which the Court can properly take judicial notice. (*Carloss v. County of Alameda, supra*, 242 Cal.App.4th at 123.) The Court does not consider evidence except matters subject to judicial notice. (*Donabedian, supra*, 116 Cal.App.4th at 994.)

To be sustained, a demurrer must dispose of an entire cause of action. (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1167, overruled in part on other grounds by *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 919; *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682-1683.) " 'There is no cause of action for punitive damages. Punitive or exemplary damages are remedies available to a party who can plead and prove the facts and circumstances [set forth in Civil Code section 3294]. . . . 'Punitive damages are merely incident to a cause of action, and can never constitute the basis thereof.' " [Citations omitted.]" (*Grieves v. Superior Court* (1984) 157 Cal. App. 3d 159, 163-164.) A motion to strike is the appropriate mechanism to attack a claim for punitive damages. (*Id.* at 164.)

The demurrer cannot be sustained because it would not dispose of an entire cause of action, only one type of damages (punitive damages) sought in the FAC. The argument that the demurrer is made to the entire complaint because the complaint as a whole does not support a claim for punitive damages misunderstands the applicable law. To sustain a demurrer to the FAC in its entirety would require the Court to find that the FAC fails to allege facts sufficient to state a cause of action against Mr. Mendieta. Defendant does not contend that the FAC fails to state a cause of action but rather than the facts alleged are insufficient to support the prayer for punitive damages, which is not a cause of action. The demurrer is therefore **OVERRULED**.